CONNECTICUT ERASED-RECORD DESTRUCTION REQUEST PREPARATION GUIDE

THIS IS AN AGENCY-APPLICATION PREPARATION GUIDE, NOT AN OFFICIAL FORM AND NOT A COURT FILING.

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ROUTE BOUNDARY

This route is only for the actual physical destruction of records already erased under Section 54-142a. It does not erase a record, does not seal a record, and is not a court petition. Connecticut's word for the underlying relief is erasure; physical destruction goes further.

The receiving office is the Superior Court clerk at the court location holding the erased records. The clerk acts on the accused's request. Before acting, ask that clerk to confirm the accepted request format and destination.

Service and notice: the committed Connecticut review states none for this request, so this guide adds none. Before you send it, ask that clerk's office whether anyone must be served or sent a copy.

TIMING AND SAFETY

Physical destruction may not occur until three years have elapsed from the date of final disposition. If fewer than three years have elapsed, wait. Ask the clerk whether any other timing rule applies to the later request.

Confirm first that the record was actually erased, the final-disposition date, and the court location holding the erased record. Ask that clerk's office exactly how it wants a request under Section 54-142a(g)(1) made, and follow that answer.

Stop for counsel if the record was not erased, the clerk requires a format, document, or step you cannot confirm, or any immigration issue exists. Section 54-142a(j) warns that erasure can make it harder to prove a disposition to federal authorities; destruction goes further.

FACTS YOU MUST CONFIRM BEFORE ACTING

Case court, location, docket number, and final-disposition date:

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Check with: the Superior Court clerk that handled the case

Confirmation that the records were already erased under Section 54-142a:

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Check with: the Superior Court clerk holding the record

Date the three-year destruction bar expires:

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Check with: the case record and the clerk

Clerk-confirmed request form, method, destination, and fee:

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Check with: the Superior Court clerk's office holding the erased records

PROTECTED ITEMS

Do not sign or date this guide. Sign and date only the agency's own request or application, in the manner that agency directs.

No court, clerk, prosecutor, agency, notary, or hearing-officer field is completed anywhere in this guide.